

6 Disagreement and Error

Part 2: Resolution of Disagreement and Critique of Anti-Realism

6.4 Can intuitionists resolve disagreements?

The final version of the Argument from Disagreement goes something like this:

1. Intuitionism provides no way of resolving moral disagreements.
2. If a metaethical theory provides no way of resolving moral disagreements, then it is false.
3. Therefore, intuitionism is false.

Typically, only premise (1) is stated explicitly. Premise (2) is also needed, but its justification remains obscure.

6.4.1 Hypothetical disagreements

How should we interpret (1)—which disagreements is the intuitionist to be castigated for his inability to resolve? For some critics, the complaint seems to be that the intuitionist has no way to resolve certain *hypothetical* disagreements. Thus, Nowell-Smith stipulates a case in which someone disagrees with us about a moral issue and will not accept any premise we might use to support our view. In such a case, he says, there is no way to resolve the dispute through reasoning. While he is undoubtedly right about this, this hardly points up a flaw in intuitionism. *No one* can provide a way of rationally resolving *any* kind of dispute if we stipulate that each party refuses to accept any premises that the other party might use. How is this supposed to be a problem?

6.4.2 Controversial moral questions

Perhaps the complaint is that there are some *actual* disagreements that the intuitionist can give us no way to resolve, such as the disputes over abortion, capital punishment, and affirmative action. While this is plausible, it is at least as plausible to think that no one *else* can provide a way of resolving such disputes either. Why should we think that a metaethical theory can only be true if it provides a way of resolving all disputes? Perhaps this is supposed to be an adequacy condition only for *realist* theories, but even then it remains unmotivated. Suppose I have just given a philosophical theory according to which there are objective facts about physical objects, and all our knowledge of such facts derives from perception. Would the following be a fair objection: 'You haven't provided a way of settling who shot JFK. Therefore, your theory is wrong'?

6.4.3 Foundational moral controversies

Perhaps the complaint is that some disagreements about *foundational* moral claims—moral claims that do not depend on other beliefs—cannot be resolved. The dispute about JFK concerns beliefs that depend on reasoning, not foundational beliefs, so it is not analogous.

If this is the argument, we should first note that foundational moral disputes are relatively rare; the disputes about abortion and affirmative action are not instances, since our beliefs about those issues depend on further beliefs. For example, most who think abortion is wrong think so because they believe that fetuses are people, that it is generally wrong to kill persons, and that abortion kills fetuses. Moreover, the literature is replete with examples of rational moral arguments concerning abortion and other notorious matters of controversy, showing that we need not throw up our hands when confronted with such disputes.²⁰ Although Ayer claims that foundational moral disagreements are 'notorious', he provides no examples. The most plausible examples are things that for the most part, only philosophers argue about, such as whether we ought to weigh other people's interests equally with our own, or whether the action with the best consequences is always right.

Second, as long as our foundationalism is of a moderate form, it is not impossible to reason about intuitive moral principles. We may hold even intuitive moral principles open to revision in the light of further evidence. The examples given in the previous paragraph are principles we have intuitions about, but moral philosophers have hardly given up reasoning about them. I shall return to this point in the following section.²¹

Third, while the inability to resolve disputes is a serious practical problem, it is simply unclear how it is supposed to constitute evidence that the theory of intuitionism is false.

Fourth, it is unclear why reasoning is not subjected to the same demands as other means of cognition. There are many apparently unresolvable disputes about beliefs that depend on reasoning, but that does not convince us that reasoning is not a legitimate means of cognition. So why would apparently unresolvable disputes about beliefs that depend on intuition convince us that intuition is not a legitimate means of cognition? Perhaps the argument presupposes that we have straightforward ways of determining, in all cases, whether a piece of reasoning is cogent. But of course that is false. There is no generally accepted, comprehensive, and useful set of rules for what counts as evidence for what. That is what such examples as the JFK dispute illustrate: no one can establish, in a way that all intelligent parties would agree with, whether the available evidence supports a conspiracy theory.

Finally, imagine a dispute about a non-intuitive, foundational claim. Two witnesses at a trial give different versions of events, both claiming to have seen what they report. This sort of case is not unusual. Both witnesses may give every known sign of sincerely believing what they say.²² Is it the job of a philosophical theory of perception to provide a way to resolve that dispute? If I cannot do so, is my theory of perception—say, my claim that the physical world is objective, or my claim that perception is a legitimate source of knowledge—thereby refuted? If not, then how would the failure to resolve some moral disputes refute either the existence of objective values, or the claim that ethical intuition is a legitimate means of cognition?

6.4.4 Disputes in general

Some charge that intuitionists have no way to resolve any disputes, or at least not any disputes about intuitions. [23] Faced with disagreement, intuitionists must immediately break out the clubs and start hitting people over the head. [24] Unlike the others, this charge would identify a serious flaw in intuitionism, since in fact some disputes are resolvable. But the charge is false.

Faced with a disagreement, an intuitionist may, among other things, attempt to determine whether one of the common causes of error discussed in section 6.3.3 is operative, and to remedy the situation if it is. He may investigate such questions as whether one party is biased; whether there are misunderstandings or confusions about some of the concepts or views involved in the debate; whether one party has made a hasty judgment or oversight; whether either party has false or incomplete information; and so on. Any of these problems could adversely affect one's intuitive judgments. In addition, some intuitions may turn out to depend (causally) on further beliefs in ways one was not initially aware of. This can sometimes be brought out by considering further hypothetical scenarios ('Would you still say x was wrong if p were the case?'), and these further beliefs can then be examined.

The problem of bias is the most troubling one. Although bias is pervasive in intellectual life, accusations of bias rarely advance discussion. They are more likely to lead to each side's searching for arguments to show that the other side is more biased, and these arguments are likely to be assessed with at least as much bias as the original moral issue. For this reason, there may be little we can do about the biases of others. But we can try to counter our own biases. Merely identifying a bias goes a great distance towards counteracting it. When approaching a moral issue, we should think about whether we are subject to the sorts of biases previously discussed. Along these lines, we should ask whether we hold the moral beliefs that we do because of our culture or religion, and if so, we should be suspicious of those beliefs. A belief's being endorsed by our culture or religion is not evidence that it is false, but it is evidence that our belief is unreliable, that we would likely hold the belief whether it was true or not.

An example from Peter Singer illustrates the point. After defending the permissibility of abortion, Singer confronts the charge that his arguments cannot distinguish between fetuses and newborn infants and thus imply that infanticide is also permissible in many cases (roughly, because newborn infants have no more sophisticated mental capacities than fetuses). He responds, in part, by informing the reader that many societies have considered infanticide acceptable and even obligatory in certain cases. Plato, Aristotle, and Seneca all recommended the killing of deformed infants. What is Singer's point here? Is he making an appeal to authority, to defend infanticide? No; his point is that our horror at the thought of killing infants is probably more a product of our particular culture (particularly, he thinks, of Christianity) than of the objective facts about infants. He also suggests that a good part of the cause of our belief is the cuteness of infants, which is morally irrelevant.²⁵

I make no attempt to resolve the disputes about abortion and infanticide. My aim is simply to illustrate the importance of looking beyond one's culture. Singer is correct to urge that the culture-specific nature of beliefs about infanticide

diminishes their authority.

Reducing bias is only part of a reasonable strategy for ameliorating moral disagreement. Moral arguments must also play a major role in the effort to resolve disputes, even disputes about intuitive principles. Philosophers may reason with one another about a moral principle by, for example, considering how well it coheres with other moral principles; looking for previously unnoticed consequences of the principle; considering how it applies to specific situations about which we have intuitions; drawing analogies between the principle and other principles that we accept or reject; and looking for plausible general constraints on moral theories (for instance: 'A moral theory should make it understandable how people can be motivated by the good' or, 'A moral theory should imply that when A is better than B and B is better than C, A is better than C').²⁶ Philosophers have far from given up on resolving moral issues, though we recognize that the project is a long-term one.²⁷ Intuitionists will naturally embrace all or nearly all of the current methods of normative ethics. In light of this, the majority of ethicists cannot reject intuitionism on the grounds that it fails to license a reasonable approach to disputed moral questions.

Why might intuitionism be thought to preclude reasoning about intuitions? It might be thought that foundationalists cannot allow reasoning about foundational beliefs. But this is a misunderstanding.

A foundational belief is defined as one that *does not need* a reason in order to be justified to some degree; it is not defined as a belief that *cannot have* a reason. Moreover, most foundationalists embrace the notion of *prima facie* justification discussed in section 5.1 above. My principle of Phenomenal Conservatism is a case in point: it holds only that appearances are rationally presumed true, until evidence of their falsity or unreliability appears. Intuitionists should allow that intuitive justification for a moral belief can be defeated, either because of tensions with other moral beliefs (one's own or others'), or because of empirical evidence of its unreliability (for example, evidence of bias). So intuitionists seem to have at least as good prospects for resolving disputes as anyone in moral philosophy.

You might feel some justified skepticism about the prospects for resolving disagreements by the means I have suggested. Few people, whatever they may say, will conscientiously work to root out their own biases. Most will continue to unreflectively defer to their culture and religion. Even moral philosophers will likely continue, for the most part, to rationalize their favored theories. For at least this reason, moral disagreement is here to stay. This reveals a grievous flaw in human nature. But it reveals no flaw in ethical intuitionism.

6.5 The self-refutation problem

The argument from disagreement is double-edged: it can be turned against the views of its proponents as easily as it can be turned against intuitionism. To begin with, notice that proponents of other metaethical positions take their own views to be objectively true. In asserting their theories about the nature of moral claims, they are not purporting merely to express or describe their emotions, for example; they are purporting to state a fact that we have adequate grounds for believing (if there are no moral facts, it is a [non-moral] fact that there are no moral facts). But if the argument from disagreement is sound, then it refutes itself, since many people do not agree with the argument from disagreement. The argument would likewise refute any metaethical position, due to the nature of disagreement in metaethics. Recall the three versions of the argument from disagreement:

1. *The Idiot's Veto*: If someone's disagreeing with a claim, in general, prevents that claim from being objectively true, then the disagreements in metaethics prevent any metaethical view from being objectively true. Similarly, some people reject the argument from disagreement, so it cannot be objectively correct.

b) The problem of explaining disagreement: The disagreement over metaethical theories is at least as widespread and persistent as that over ethical theories. Should we explain this by denying the existence of any correct metaethical theory? Similarly, there is no general agreement on whether the argument from disagreement is correct; does this suggest that there is no fact about whether it is correct?

If ethical disagreements are problematic for the intuitionist because they suggest that intuition is unreliable, then disagreements in metaethics are equally problematic for any metaethicist because they suggest that philosophical reflection and reasoning—or whatever methods metaethicists have been using—are unreliable. Many of the central ideas and arguments in the field have been around for decades, and philosophers have yet to agree on their soundness.

c) The problem of resolving disagreement: Similarly, if the intuitionist lacks an effective method for resolving ethical disputes, we all lack an effective method for resolving metaethical disputes. Again, the methods actually employed by

philosophers have so far proved no more successful in resolving metaethical issues than they have in resolving ethical issues.

One reason for this is that the choice of a philosophical theory generally depends on broad judgments of overall plausibility made in the light of numerous inconclusive arguments, the relationship of the theory to other philosophical theories, and the various 'theoretical advantages' and disadvantages of competing views.²⁸ I see no alternative to this approach, but it means that most major philosophical disputes are unlikely to be resolved in the foreseeable future.

How should we react to the phenomenon of disagreement in philosophy? One might justifiably conclude that philosophical knowledge is very difficult to attain and that very little of it has been attained. One might thus be moved to take a hesitant and modest attitude towards one's philosophical beliefs. What one should not say—not just because it would be self-defeating, but because it is evidently false—is that we lack the cognitive faculties required for approaching philosophical questions. However difficult they may be and however prone we may be to error, we are not simply closed off to philosophical questions (in the sense in which my cat is)—we understand them and can make rational arguments about them. Intuitionism's opponents do not deny this; if they did, they would not engage in philosophical discourse. Similarly, a modest attitude towards controversial moral beliefs is supported by the phenomenon of moral disagreement; what is not warranted is a denial that moral questions have answers or that we have the cognitive faculties for approaching them.

6.6 Disagreement as an argument for realism

The argument from disagreement is typically advanced by anti-realists. But for the reasons we have seen, the phenomenon of disagreement provides no significant evidence for their view. In fact, I shall now argue that disagreement is more of a problem for anti-realists than it is for realists.

6.6.1 Can anti-realists explain disagreement?

To start with, how can anti-realists explain why we argue with others about moral issues, asserting them to be mistaken, and so on? We have already seen the difficulties for subjectivists (chapter 3): According to individualist subjectivism, you can't disagree with someone's moral claim unless you think he's falsely reporting his own feelings. According to cultural relativism, you can't disagree with someone's moral claim unless you think he's wrong about what his society's customs are. It is hard to see why there should be widespread, unresolvable disputes about what our emotions or conventions are. On a non-cognitivist view, there aren't even any propositions to disagree about. People can have 'conflicting attitudes'²⁹—but this would not explain why, for example, one would try to reason with opponents of euthanasia or tell them they are mistaken. One does not normally argue with people or tell them they are 'mistaken' merely because they have different feelings from one's own.

Consider three replies to this. First: Perhaps we argue about moral issues because we mistakenly think moral realism is true. This reply works for nihilists. It does not work for subjectivists or non-cognitivists. Our belief in objective values only explains our arguing about moral questions if we take moral terms to refer to those objective value properties. But the subjectivist or non-cognitivist thinks moral language does not refer to any alleged objective properties but only expresses or reports subjective mental states. This leaves them with the bizarre idea that almost everyone is fundamentally wrong about the meanings of common words in our language and that, although we believe in objective value properties, we don't have any words for them.

Second: Perhaps our arguments about moral issues do not concern fundamental value judgments; what we're arguing about is really only the non-moral facts that moral judgments depend upon. For instance, perhaps those who disagree about whether euthanasia is permissible really just disagree about the effects that allowing euthanasia would have. But this reply surrenders the fundamental premise of the argument from disagreement—namely, that there are widespread, fundamental moral disputes.

Third: Perhaps we argue about moral issues in an effort to change others' non-cognitive attitudes, not to change their beliefs. But we don't try to change others' attitudes by merely emoting at them; when we argue with others about morality, we say and think that they are *mistaken*, and we purport to give them intellectual reasons for changing their minds. This could make sense on an anti-realist view only if we think others are mistaken about some non-moral facts that their moral attitudes depend upon. In that case, argumentation could hope to change others' attitudes by correcting their mistaken factual assumptions. But again, this requires that moral disagreements fundamentally derive from mistakes about non-moral matters, contrary to the assumption of the argument from disagreement.

Non-cognitivists and subjectivists are, therefore, in no position to press the intuitionist's alleged inability to explain moral disagreement; moreover, to the extent that we are convinced that some moral disagreements really are fundamental, we have reason to reject non-cognitivism and subjectivism.

The situation for nihilists is more complex. They can explain moral disagreement by appealing to our widespread, mistaken belief in realism—but only if they can explain why people would make such an error. On the face of it, the simplest explanation for why nearly everyone thinks moral realism is true, is that it *is* true. Nihilists have proposed alternate explanations,³⁰ but it would take us too far afield to discuss them; for now, then, let us allow that nihilists may be able to account for moral disagreement.

6.6.2 Can anti-realists resolve disagreements?

The most that anti-realists might claim is that intuitionists have no way to resolve *fundamental* moral disagreements—that is, moral disagreements that do not depend upon factual errors or errors in reasoning. Allegedly, intuitionists can only exhort interlocutors to concentrate harder on the moral issue, and perhaps hit them over the head. But what does the anti-realist have to offer? For anti-realists, there are no objective value facts; so when it comes to fundamental value disputes, there is nothing *cognitive* that we can do; all we can do is, perhaps, to cajole, threaten, or agree to disagree. (Nihilists just say that everyone is wrong.) How is this supposed to be superior to ethical intuitionism, even on the least sophisticated interpretation of intuitionism?

It is at this point that anti-realists will express optimism about how much people really have in common and about how many moral disputes will turn out to depend on errors of fact and reasoning.³¹ But the grounds for thinking people to have fundamentally different sensibilities seem at least as strong as those for thinking people to have fundamentally different intuitions.

Most anti-realists would want to embrace the methods of contemporary ethics, just as most contemporary ethicists embrace anti-realism. Is this consistent? Current practice in moral philosophy includes:

a) *Ubiquitous appeal to intuitions* (with or without using the word 'intuition'). Every moral argument employs one or more intuitions. Take Peter Singer's well-known argument for a strong obligation to assist the poor: he relies on the 'plausible principle' that if we can prevent something bad without sacrificing anything of comparable significance, we ought to do so. Not content with this, he appeals to a hypothetical example in which he passes by a child drowning in a shallow pond. Singer appeals to our moral intuition (what else can it be called?) that he is obligated to help the child.³² As this case shows, intuitions both about general principles and about particular cases are used.

How can an anti-realist accommodate this? The nihilist can have no truck with any of this, since he thinks the relevant moral statements are all false—unless, perhaps, he proposes to reform our moral language, so that we come to use it as the non-cognitivists or subjectivists think we do.

For the non-cognitivist, moral discourse only expresses our attitudes. For the subjectivist, it reports our attitudes. Either way, it would seem that the only cognitive task for a moral philosopher is to study our feelings, desires, and other attitudes. Perhaps it will be said that the arguments based on moral intuitions are simply in the service of that aim—Singer is just drawing to our attention that we in fact approve of acts of preventing-bad-things-without-sacrificing-things-of-comparable-significance, including such acts as removing drowning children from shallow ponds. Perhaps it is not intuitions that his argument relies on, but moral emotions.

This would be fine, were it not for the second feature of contemporary discourse in moral philosophy:

b) Criticisms of biases. Sometimes it is argued that certain moral intuitions or beliefs are unreliable, since they are just due to our culture, our religion, or plain selfishness. Recall, for example, Singer's argument that our intuitions about infanticide are unreliable since they are just due to cultural programming.³³ Elsewhere, he has suggested that our belief in the superiority of the human species is due to selfishness and to religious teachings that reflect our self-interest.³⁴

This makes sense to a moral realist: if a moral belief is due to biases of a kind that in general frequently cause false beliefs, then that belief likely fails to correspond to the moral facts. But what should an anti-realist say? The notion of 'bias' presupposes realism—a bias is a desire, emotion, or other psychological state that tends to distort our perceptions, to lead us away from the truth. That presupposes that there is a truth independent of our perceptions. For a cultural relativist, Singer's argument concerning infanticide is worse than a non sequitur: his premise that our beliefs about infanticide are caused by cultural indoctrination would prove those beliefs correct, rather than undermining them as Singer assumes. Even

for a subjectivist or non-cognitivist, our culture is just one more source of our moral emotions; on what grounds could moral reactions caused by it be considered 'incorrect'?³⁵ The same applies to the supposed bias due to self-interest: if self-interest colors our moral emotions, all that shows is that self-interest partly determines what is morally right or good.

Perhaps the anti-realist would say that once we realize what causes some of our moral emotions, we will lose those emotions. Perhaps when we realize that our horror at infanticide is culturally programmed, we will stop feeling it. Or perhaps not. If moral emotions were caused by putative perceptions of moral facts, or if there were some outside standard of 'appropriateness' of moral emotions, perhaps then we would lose our moral emotions on discovering their parochial source. But once we renounce the idea that there is any moral truth independent of our feelings, why should the unsurprising discovery that some of our moral emotions are caused by cultural conditioning undermine those feelings?

A third aspect of our moral discourse is closely related to the second:

c) Criticisms of moral intuitions based on other intuitions. Peter Singer, again, has suggested that 'our intuitive judgments [about particular cases] are based on things that are obviously of no moral significance at all'. For example, he thinks our intuitions are biased towards those who are physically closest to us (so that we think we have stronger obligations to people in our neighborhood, say, than to those on other continents). How does Singer know that physical proximity is not morally relevant? The answer seems to be that that is 'obvious' or 'self-evident'—in short, it is an intuition.³⁶

The intuitionist can understand this: intuitions are a fallible form of access to moral truth. We can correct errant intuitions by appeal to firmer and more reliable ones. But what should an anti-realist say?

A 'morally relevant' property is one that affects whether a thing is good, bad, right, or wrong. On the subjectivist or non-cognitivist view of morality, this can only mean a property that affects (a certain subset of) our attitudes. So if physical proximity really affects our moral attitudes as Singer says, then that just proves that physical proximity is morally relevant.

Perhaps it would be argued that what is moral is determined, not by our current attitudes, but by the attitudes we would have if we were to become fully informed and rational (removing all inconsistencies and factual errors from our minds, and so on; see above, section 3.5). It is plausible on a realist view that a fully rational person would not have the bias towards those physically close to him that Singer describes, since he would recognize it as a bias. But there appears nothing inconsistent in our having this attitude, nor does it depend on a factual error, nor does Singer attempt to argue that it does. So why should a rational anti-realist lose the attitude? The fact that Singer's argument is regarded as forceful by ethicists, rather than an obvious non sequitur, suggests that moral philosophers illicitly employ an intuitionist methodology while purporting to reject intuitionism.

Now here are some things that do not normally appear in the ethics literature:

d) Mere appeals to common practices. Critics of the notion of animal rights do not, for example, argue that since eating meat is the custom around here, it is right. Nor do animal rights supporters take the widespread maltreatment of animals to refute their own moral views.

e) Mere appeals to the author's or audience's emotions and desires. Abortion opponents do not, for example, say that abortion is wrong because they or their audience has sympathetic feelings about cute little fetuses. Abortion defenders do not argue that abortion is not murder because abortion doesn't make them feel the way murder does.

f) Naked rhetoric. Philosophers do not attempt to 'convince' their audience of their moral views by simply using emotionally charged language, telling tear-jerking stories, or directing demands at the audience.

If some form of subjectivism, relativism, or non-cognitivism is true, why shouldn't the above be the common practice?

Subjectivists and non-cognitivists would advise us to be more subtle than merely to make direct appeals to current attitudes in all cases; they would say that we need to do some reasoning to make sure our attitudes are consistent and rest on no factual errors. Perhaps that is what moral reasoning is about. This suggestion, however, bears little resemblance to actual moral reasoning, nor is it likely to succeed in resolving many disputes. Recall the suggestion discussed in section 3.3 that the practice of slavery was criticizable from within our culture because it was inconsistent with our custom of respect for persons in general: why shouldn't the slavery-advocate simply reply, 'No, we don't have a custom of respect for all persons. We have a custom of respect for white persons'? One may be tempted to object that this rests on an arbitrary distinction—but if what is morally arbitrary or significant is just determined by customs, then skin color is morally significant, in many cultures. Compare the idea, perhaps supported by Singer, that our failure to aid the Third World poor is

inconsistent with our general sympathy for other people: why shouldn't one simply reply, 'No, I don't have a feeling of sympathy for all other people. I have a feeling of sympathy for nearby people, who belong to my social group'? Those replies would make sense if we were subjectivists or non-cognitivists—they should at least have an important place in the debate—but in fact no one makes replies of that kind.

I grant that there are cases in which we act inconsistently with our customs—a few people occasionally slurping directly from the bowl does not refute the claim that our custom is to eat soup with a spoon; those few people are just violating the custom. Similarly, people's occasionally maltreating blacks would not refute the claim that we have a custom of respect for persons in general. But if the members of a society intentionally and routinely maltreat members of a certain race, then we don't say that they have two customs: a custom of respect for all persons, plus a custom of disrespect for one race. We say they have a custom of respect for members of certain races and not others. A similar point applies to individual attitudes as applies to customs.

The anti-realist does, in fact, have available methods of resolving moral disagreements. The anti-realist should be employing methods (d), (e), and/or (f). The intuitionist should be employing (a), (b), and (c). Almost no one would find the anti-realist's approach more attractive than the intuitionist's.

This concludes our treatment of the most popular objection to intuitionism. The widespread confidence that ethical disagreement provides an immediate refutation of intuitionism appears to rest on little more than caricatures of the theory, epistemological double standards, and disregard of the phenomena of disagreement and error outside of normative ethics. Intuitionists do not hold moral error to be impossible, ethics is far from the only area where we find persistent disagreements, and intuitionists can take moral errors to be caused by the same kinds of factors as cause mistakes in other areas. Nor are intuitionists at a loss for ways of trying to reduce moral disagreement; they can endorse the very argumentative strategies currently employed by moral philosophers, including strategies designed to identify which intuitions are most likely to be in error. Intuitionists cannot promise a swift resolution of most moral controversies, but nor can anyone else. Finally, the arguments against intuitionism based on disagreement could be made with at least equal force against other metaethical theories, yet only against intuitionism have they been considered persuasive. This suggests that the argument from disagreement has seemed plausible only because philosophers had already rejected intuitionism for other reasons.